

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006803

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: CABOUCHON
PROPERTIES, LLC

vs.

DEFENDANT: L L & L LLC

NATURE OF PROCEEDINGS: 1) MOTION – COMPEL DISCOVERY FACILITATOR PROGRAM
2) MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM

RULING

Before the Court are two motions to compel. Plaintiff seeks further responses to Form Interrogatories, Special Interrogatories and documents responsive to its Request for Production of Documents. Defendant seeks further responses to its Requests for Production of Documents. Each side seeks monetary sanctions.

The parties have narrowed their disputes as follows:

Plaintiff's Motion

According to Plaintiff's Declaration of Non-Resolution, at issue are responses to all Form Interrogatories, Set One, and all Special Interrogatories, Set One except Special Interrogatory No. 6. Plaintiff also seeks documents responsive to Request Nos. 29, 30, and 32.

Defendant's Declaration of Non-Resolution avers it has agreed to produce supplemental responses to Form Interrogatories 12.1 through 12.6, 14.1, 15.1 and 16.1 based on its definition of incident. It has also agreed that it will confer with its client to see if there are additional documents responsive to Request Nos. 29, 30, 32. It has not specified a date by which responses or documents will be produced.

As to the Special Interrogatories, Defendant complains that Special Interrogatories Nos. 3-5 are overbroad because they seek the identity of all maintenance technicians who have worked at the subject property from January 2021 through the present. Defendant also argues that Nos. 9-11, 17-23, 22-27 and 58-60 are not relevant to the leak involved in this lawsuit because they seek information as to all tenants regarding leaks over the last five years.

Legal Standard

“Unless otherwise limited by order of the court. . . any party may obtain discovery regarding *any matter, not privileged*, that is *relevant to the subject matter* involved. . . if the matter either is itself admissible in evidence or appears *reasonably calculated to lead to the discovery of admissible evidence. . .*” (Code Civ. Proc. § 2017.010 [emphasis added].) “Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc. § 2030.220(a).) And, “[i]f the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.” (Code Civ. Proc. § 2030.220(c).)

The burden of justifying an objection falls squarely on the party resisting a response. (*W. Pico Furniture Co. of Los Angeles v. Superior Court* (1961) 56 Cal.2d 407,422.)

Analysis

As to the responses to Form Interrogatories, it is unclear why, several months later, Defendant has failed to provide responses. Defendant has defined the word “incident” and Plaintiff does not appear to object to its definition. Responses must be provided forthwith.

Defendant’s objections to Special Interrogatories Nos. 3-5 are overruled. Plaintiff has properly narrowed the time frame in its requests to January 2021. Overbreadth objections to interrogatories are disfavored and should not be considered absent specific evidence. (*Burke v. Superior Court* (1969) 71 Cal.2d 276, 281.) Similarly, the remaining interrogatories to which relevancy objections have been interposed are overruled as the interrogatories are calculated to lead to admissible evidence. Finally, Defendant must provide additional documents requested and promised.

In light of the above, Defendant shall provide further code-compliant responses to all Form Interrogatories and Special Interrogatories as specified above within ten days of service of this order. Defendant shall provide documents responsive to 29, 30 and 32, and if no documents exist, it shall amend its responses to Plaintiff’s Request for Documents to so state.

Sanctions are awarded in favor of Plaintiff Cabouchon and against Defendant LL&LLC in the amount of \$4,500 as Plaintiff is the prevailing party and Defendant has failed to justify circumstances which would argue against the imposition of such sanctions.

Defendant’s Motion

Defendant’s motion appears to seek further responses related to Plaintiff and any of its insurance carriers regarding the property. No separate statement was filed. Defendant’s Declaration of Non-Resolution appears to clarify this discovery concerns Request Nos. 14, 16 and 18. However, Defendant did not provide a copy of these discovery requests or responses.

The Court is unable to discern the specific requests at issue and on this basis, the motion is denied.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008270

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

IN THE MATTER OF:

SAUSALITO YACHT CLUB MEMBERS
FOR FAIR GOVERNANCE

NATURE OF PROCEEDINGS: 1) DEMURRER
2) MOTION - STRIKE

RULING

The demurrer to the First and Second Causes of Action is sustained as to Plaintiff Sausalito Yacht Club Members for Fair Governance only, without leave to amend, and is overruled in all other respects. Plaintiffs must file verifications for the individual plaintiffs by no later than September 14, 2026. If the verification of any individual plaintiff is not filed by that day, the Court will enter a further order sustaining the demurrer as to those plaintiffs. The demurrer to the Third Cause of Action is overruled. The motion to strike is denied in its entirety.

Allegations in the Second Amended Verified Petition and Derivative Complaint

Petitioner/Plaintiff Sausalito Yacht Club Members for Fair Governance (“SYCMFG”) is an unincorporated California association suing on behalf of its members individually and derivatively on behalf of the Sausalito Yacht Club (the “Club”), a California mutual benefit non-profit corporation. Petitioners/Plaintiffs Marisa McArthur (“M. McArthur”), Marge Bottari (“Bottari”), Tammy Blanchard (“T. Blanchard”), Ross Blanchard (“R. Blanchard”), Brian McArthur (“B. McArthur”), and Tina Frank (“Frank”) are current or former members of the Club. Together, SYCMFG and the individual petitioners/plaintiffs will be referred to as “Plaintiffs”.

Plaintiffs allege that leadership of the Club manipulated its member disciplinary process to expel, suspend and reprimand M. McArthur, then the Vice Commodore of the Club who was running for the position of 2026 Commodore as a write-in candidate, and her family and supporters, for the purpose of favoring her rival, Defendant Executive Board Chair Tom Aden (“Aden”), for the position. M. McArthur, her family members, and supporters were disciplined after they used the member roster to send emails promoting M. McArthur’s candidacy. Aden